

Court No. - 32

Case :- WRIT - C No. - 43156 of 2019

Petitioner :- Harjinder Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ravi Shanker Tiwari

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Shashi Kant Gupta, J.

Hon'ble Piyush Agrawal, J.

This writ petition has been filed, inter alia, for the following relief:

"(i) Issue a writ, order or direction in the nature of certiorari by quashing the citation notice dated 7.9.2019 sent by respondent no.2 to the petitioner.

(ii) Issue a writ order or direction in the nature of mandamus by directing the respondent no.3 to provide the actual / correct bill to the petitioner and same was recovered in easy installments from the petitioner."

Heard Mr. Ravi Shanker Tiwari, learned counsel for the petitioner, Sri Mukesh Kumar Singh, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for the reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within four weeks from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of six weeks or till the matter is decided by the authority concerned, whichever is earlier, no coercive action shall be taken against the petitioner.

It is made clear that in case the petitioner does not approach the authority concerned within the stipulated period, as indicated herein above, the benefit given to the petitioner under this order shall cease to operate.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 3.1.2020/samz